STAFF REPORT

TO: Mayor and City Council

FROM: Sophie Craft, Administrative Assistant I

VIA: Risa De Ferrari, City Clerk

SUBJECT: Approval of the July 29, 2026, Special City Council Meeting Action Minutes.

DATE: September 8, 2026

Approved for Forwarding:

Todd Cusimano

Todd A. Cusimano, City Manager

Issue: To approve the City Council meeting action minutes noted above.

Recommendation: Approval of the July 29, 2026, Special City Council Meeting Action Minutes.

Fiscal Impact: None.

Attachments:

1. July 29, 2026, Special City Council Meeting Action Minutes.

ITEM 5

SPECIAL CITY COUNCIL MEETING
DRAFT ACTION MINUTES

COUNCIL CHAMBERS, CITY HALL
26 CORTE MADERA AVENUE, MILL VALLEY
WEDNESDAY, JULY 29, 2026
5:30 P.M.

Mayor Max Perrey — *present*
Vice Mayor Caroline Joachim — *present*
Councilmember Urban Carmel — *present*
Councilmember Katherine Jones — *excused absence*
Councilmember Stephen Burke — *present*

CITY STAFF PRESENT: City Manager Cusimano; City Attorney Ortiz; Deputy Director of Administration Rogers; Deputy Director of Human Resources Allingham; Deputy Director of Public Works and City Engineer Barrilleaux; Management Analyst I Kadlec; Senior Project Manager Brencic; Administrative Assistant I Craft; City Clerk De Ferrari.

CALL TO ORDER

Mayor Perrey called the meeting to order at **5:33 P.M.** and noted that **Councilmember Jones** was excused.

ACTION OUT OF CLOSED SESSION

None.

APPROVAL OF THE AGENDA ORDER

Mayor Perrey noted that the Public Hearing originally noticed for the July 20, 2026, Regular City Council Meeting regarding Application PL24-0080, would be continued off-calendar to a date uncertain. The City will re-notify the public hearing prior to returning the item to the City Council Agenda.

It was **MOVED** by **Councilmember Burke** and **SECONDED** by **Councilmember Carmel** to approve the agenda order. The motion was carried by a **4-0-1 vote,** with **Councilmember Jones** absent.

CONSENT CALENDAR

Mayor Perrey asked if any councilmember or members of the public wished to pull an item from the Consent Calendar. There were no requests from the public or online participants.

City Staff requested to pull **Item #4** and read the following correction into the record: "to add 'Deputy Director - Planning' to the salary schedule. [Which] will fall into the same salary range as the other Deputy Directors."

It was **MOVED** by **Councilmember Joachim** and **SECONDED** by **Councilmember Burke** to approve **Item #4** on the Consent Calendar with the noted correction. The motion was carried by a **4-0-1 vote,** with **Councilmember Jones** absent.

It was **MOVED** by **Councilmember Carmel** and **SECONDED** by **Councilmember Joachim** to approve the Consent Calendar **Items #1-3, and #5.** The motion was carried by a **4-0-1 vote,** with **Councilmember Jones** absent.

1. Consideration of June 15, 2026, Regular City Council Meeting Action Minutes.
   Recommended Action: Approve action minutes.

2. Consideration of a Letter from the City Council to Oppose AB 1383 (McKinnor) Public Employees' Retirement Benefits (As Amended May 13, 2026).
   Recommended Action: Consider Approval of Letter.

3. Consideration of a Resolution to Authorize the Mayor to Execute on Behalf of the City a Three-year Community Development Block Grant Cooperation Agreement with the County of Marin.
   Recommended Action: Adopt Resolution No. 26-__.

4. Consideration of a Resolution Making Minor Amendments to the Salaries, Titles, and Benefits of the City's Non-Represented Employees.
   Recommended Action: Adopt Resolution No. 26-__.

5. Consideration of a Resolution Accepting as Complete the 2025 Annual Street Rehabilitation Project Notice of Completion (NOC).
   Recommended Action: Adopt Resolution No. 26-__.

PUBLIC OPEN TIME

Mayor Perrey opened Public Open Time.

Speakers: None.

Communications (via eComment): None.

Mayor Perrey closed Public Open Time.

COUNCIL/STAFF ANNOUNCEMENTS AND COUNCIL LIAISON REPORTS

Councilmember Burke attended the Marin Wildfire Prevention Authority (MWPA) meeting where they elected the president and vice-president. He noted a new Fire Safe Marin 'Firewise' certification program for general contractors. **Councilmember Burke** reported on a Sewerage Agency of Southern Marin (SASM) walking tour attended by representatives from the San

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Francisco EPA office. He noted that the Richardson Bay Authority is down to one occupant in the anchor-out community and that a recognition event for the final grant recipient for temporary housing support is scheduled for August 6. **Councilmember Burke** reported that the Summer House and Indora project is nearing permit issuance.

Councilmember Carmel reported on two Transportation Authority of Marin (TAM) meetings and a TMAC meeting. He noted a county-wide initiative to develop GIS-based data on speed, volume, accident history, and near-miss incidents across road networks. **Councilmember Carmel** reported on a meeting with the Rotary Club President regarding Mill Valley Gold Course plans, noting that multiple architects reviewed and provided positive feedback. He also noted that a top-five SLP priority list is being developed for the Capital Improvement Projects (CIPs) and that the Measure L Citizens Oversight Committee met on June 24 and will convene again in autumn. **Councilmember Carmel** attended the celebration of community member Michael Heacock, and his completion of the Triple Crown of open water swimming; and proposed a proclamation to be presented by the City Council at the August 17 City Council meeting. **Councilmember Carmel** noted the announcement of the Milley Award recipients, who will be recognized at the October 18 ceremony.

Vice Mayor Joachim announced that two new Lumisphere sculptures were installed on Miller Avenue, with electrical connections and a ribbon-cutting slated for August. She reported on Live Well Mill Valley events planned for October 15 on the plaza and in November. Focusing on healthcare options for older adults. On behalf of the MCCMC, **Vice Mayor Joachim** noted that the November ballot will include at least 14 measures, including the Veterans and Affordable Housing Bond Act. She reported on additional legislative activity on budget items, cap-and-trade, tort reform, wildfire liability, Zone 0 regulations, and clean fleet compliance for contractors. **Vice Mayor Joachim** reported on the Police Governance Oversight Committee Q2 review, covering crime statistics and Flock Safety Camera system review. She shared a note from the Mill Valley Little League President, Patty Shore, congratulating the 12-year-old All-Sar team on a fourth place finished at the state tournament**. Vice Mayor Joachim** commended the rapid and well-coordinated response to the fire on Hillside Avenue and thanked all first responders. She noted that the Southern Marin Fire Department is planning a community event.

Mayor Perrey reported that he sent congratulatory letters to all Milley Award recipients. He attended the Measure L Citizens Oversight Committee. On behalf of MCE Clean Energy, **Mayor Perrey** reported a governance assessment committee had selected an independent contractor to conduct an assessment, selected a CEO search ad hoc committee and a grand jury response committee has begun weekly meetings. He noted the sea level rise outreach initiative by Public Works Project Manager Swim and volunteer Emily Pitkin. **Mayor Perrey** also extended appreciation to the public safety response to the Hillside Avenue fire.

CITY MANAGER'S REPORT

City Manager Cusimano acknowledged Vice Mayor Joachim's leadership in designating Mill Valley as a Clean California Community, making the city potentially eligible for related state grants. He reported on the planned improvements to the Building and Planning Department's customer service and permit processing. **City Manager Cusimano** reported that staff is meeting with PG&E to explore processes that would allow neighborhoods to vote on fully undergrounding utility lines in conjunction with the current undergrounding process.

Interim Fire Chief Tom Welch provided an overview of the Oakland Hills fire response.

PUBLIC HEARING

6. Conduct a Public Hearing on a Written Report Listing the Proposed Sewer Fees for Fiscal Year 2026/27, Take Public Testimony, Receive Written Protests, Close the Public Hearing, Tabulate the Number of Valid Written Protests and, if There is Not a Majority Protest, Adopt the Resolution Authorizing the Levying and Collection of the Sewer Service Fee on the Tax Roll for Fiscal Year 2026/27.
   Recommended Action: Adopt Resolution No. 26-__.

Mayor Perrey opened the public meeting.

Management Analyst I Kadlec presented the item.

Councilmembers asked questions.

Mayor Perrey opened Public Comment.

Speakers: None.

Communications (via eComment): None.

Mayor Perrey closed Public Comment and the Public Hearing.

Mayor Perrey asked **Councilmembers** if they had any deliberative comments, seeing none, the Mayor requested **City Attorney Trisha Ortiz** assist with calling for a vote.

City Attorney Ortiz read the resolution into the record and called for a motion.

It was **MOVED** by **Councilmember Carmel** and **SECONDED** by **Councilmember Burke** to Adopt the Resolution Authorizing the Levying and Collection of the Sewer Service Fee on the Tax Roll for Fiscal Year 2026/27. The motion was carried by a **4-0-1 vote**, with **Councilmember Jones** absent.

7. Receive the Public Facilities and Services Report; Conduct a Public Hearing and Consider a Resolution Forming Community Facilities District No. 2026-1 (Municipal Services) and Submitting the Levy of a Special Tax to the Qualified Electors thereof; and Consider Resolutions Calling a Special Election, Consolidating the Election, and Authorizing a Written Argument in Favor of the Municipal Service Tax Measure.
   Recommended Action: Receive Report, and Adopt Resolutions 26____, 26-___, 26-___, 26-___.

Mayor Perrey opened the Public Hearing.

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City Clerk De Ferrari confirmed that the public notice of the Public Hearing was published in the Marin Independent Journal, on July 10, 2026, as required by the Mello-Roos Community Facilities Act and by prior City Council resolutions.

Deputy Director of Administration Rogers presented the item.

Councilmembers asked questions.

Mayor Perrey opened Public Comment.

Speakers: None.

Communications (via eComment): None.

Mayor Perrey closed Public Comment.

City Clerk De Ferrari confirmed that written protests had not been received from owners of 50% or more of the land area within the proposed district, nor from 50% or more of registered voters within the district, and therefore no majority protest exists.

City Attorney Ortiz read the four resolution titles for Council consideration and asked for two motions.

It was **MOVED** by **Councilmember Carmel** and **SECONDED** by **Councilmember Burke** to Adopt the Resolution to Establish City of Mill Valley Community Facilities District No. 2026-1 (Municipal Services), to Make Environmental Findings and Determinations with Respect Thereto Pursuant to the California Environmental Quality Act, to Establish an Appropriations Limit Therefor, to Authorize the Levy of a Special Tax Therein, and to Submit the Establishment of an Appropriations Limit and the Levy of a Special Tax to the Qualified Electors Thereof. The motion was carried by a **4-0-1 vote**, with **Councilmember Jones** absent.

It was **MOVED** by **Councilmember Burke** and **SECONDED** by **Councilmember Carmel** to Adopt the Resolution Calling a Special Election Within the City of Mill Valley Community Facilities District No. 2026-1 (Municipal Services) and Directing the City Attorney to Prepare and Impartial Analysis; Adopt the Resolution Requesting the Board of Supervisors of the County of Marin to Consolidate a Special Election of Said City to be Held on November 3, 2026, with the Statewide General Election to be Held on that Date Pursuant to Section 10403 of the California Elections Code and to Request Election Services by the Elections Official of Said County; and Adopt the Resolution Authorizing a Written Argument in Favor of the Municipal Service Tax Measure. The motion was carried by a **4-0-1 vote**, with **Councilmember Jones** absent.

NEW BUSINESS

8. Consideration of a Resolution to Implement a Pilot Program Involving Safety Improvements to Miller Avenue at the Montford Avenue/La Goma Street Intersection.
   Recommended Action: Adopt Resolution No. 26-__.

Deputy Director of Public Works and City Engineer Barrilleaux and **Senior Project Manager Brencic** presented the item.

Councilmembers asked questions.

Mayor Perrey opened Public Comment.

Speakers: 1) Jeremy Gribler

Communications (via eComment): None.

Mayor Perrey closed Public Comment.

It was **MOVED** by **Councilmember Carmel** and **SECONDED** by **Vice Mayor Joachim** to Adopt the Resolution to Implement a Pilot Program Involving Safety Improvements to Miller Avenue at the Montford Avenue/La Goma Street Intersection. The motion as carried by a **4-0-1 vote**, with Councilmember Jones absent.

CLOSED SESSION – The Council will convene to a Closed Session discussion. Any public announcement regarding the Closed Session will be made after the Closed Session and prior to adjourning the regular meeting.

A. CLOSED SESSION BUSINESS – Following Public Comment, the City Council will adjourn to Closed Session to consider the following:

1A. Conference with Legal Counsel – Existing Litigation (Government Code Section 54956.9) Friends of Hauke Park v. City of Mill Valley I – Marin County Superior Court Case No. CV0000005; Friends of Hauke Park v. City of Mill Valley II – Marin County Superior Court Case No. CV0002212; Friends of Hauke Park v. City of Mill Valley III – Marin County Superior Court Case No. CV0009204.

B. ACTION OUT OF CLOSED SESSION

Mayor Perrey reported out that **Councilmembers** voted to defend an appeal filed in the Existing Litigation (Government Code Section 54956.9) Friends of Hauke Park v. City of Mill Valley I – Marin County Superior Court Case No. CV0000005. The motion was carried by **a 4-0-1 vote,** with **Councilmember Jones** absent.

COUNCIL REQUESTS AND IDEAS FOR DISCUSSION

None**.**

ADJOURNMENT – ***The Council ADJOURNED at 8:01 P.M.***

The next Regular City Council meeting will be held on Monday, August 17, 2026, at 5:30 p.m. in the Mill Valley City Council Chambers.

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APPROVED AND ADOPTED BY THE MILL VALLEY CITY COUNCIL ON XX XX, XXXX

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Max Perrey, Mayor

ATTEST:

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Risa De Ferrari, City Clerk

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